

opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §2031.300.) Here, the court has not been provided a basis upon which to find that Defendant acted with substantial justification or that other circumstances make the imposition of a sanction unjust.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504523	BROWN VS EQUITY LIFESTYLE PROPERTIES, INC.	ANTI-SLAPP MOTION

Tentative Ruling: Defendant MHC Thousand Trails Limited Partnership’s Special Motion to Strike is granted as to the 8th through 11th causes of action in full; as to the portions of the 13th through 17th causes of action and claims for damages, it is granted.

Defendant’s request for attorney fees at the reasonably reduced rate of \$2,400.00 is granted, payable to defense counsel within 30 days.

The Legislature enacted the anti-SLAPP procedure due to “a disturbing increase in lawsuits brought primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (C.C.P. § 425.16(a).) It is a two-step process where the moving defendant has the burden to first establish that the allegations or claims arise from protected activity, and then the plaintiff has the burden to demonstrate that the claim has minimal merit. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

Moving Party’s Burden

The moving party bears the initial burden of showing that the action falls within the class of suits subject to the special motion to strike. (*Wilcox v. Superior Court* (1994) 17 Cal.App.4th 809, 819.) A defendant is required to make a prima facie showing that plaintiff’s suit arises from any act of defendant in furtherance of his right to petition or his right of free speech under the federal or state constitution in connection with an issue of public interest. (C.C.P. § 425.16(e); *Equilon Enterprises v. Consumer Cause* (2002) 29 Cal.4th 53, 67.) The act that forms the basis for the plaintiff’s cause of action must itself have been an act in furtherance of the right of petition or free speech. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76-78.)

A defendant may meet this burden by showing that the act that forms the basis for the plaintiff’s suit was: (1) any written or oral statement made before a legislative, executive or judicial proceeding; (2) a statement or writing made in connection with an issue under consideration in such a proceeding or “any other official proceeding authorized by law;” (3) any written or oral statement made in a place open to the public or a public forum in connection with an issue of public interest; or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with an issue of public interest. (C.C.P. § 425.16(e).) A defendant must

show the conduct underlying the cause of action fits into one of those four categories. (*Century 21 Chamberlain & Associates v. Haberman* (2009) 173 Cal.App.4th 1, 7.)

“The anti-SLAPP statute’s definitional focus is not the form of the plaintiff’s cause of action but, rather, the defendant’s *activity* that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92, *original emphasis*.)

“The prosecution of an unlawful detainer action indisputably is protected activity within the meaning of section 425.16.” (*Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467, 1479-1480, quoting *Birkner v. Lam* (2007) 156 Cal.App.4th 275, 281-285.) Here, Defendant seeks to strike the entire TAC with prejudice, arguing that it is premised upon Defendant’s prosecution of the UD Action, which is protected activity. Alternatively, Defendant seeks to strike the 8th through 11th and 13th through 17th causes of action, as well as claims for damages arising from relocation expenses and loss of possession of Site 400, which it argues are premised upon the underlying UD Action.

Special Motion to Strike the Entire TAC

To prevail on its special motion to strike the entire TAC, Defendant must establish that the entire complaint arises out of its protected activity. “Arising from” means that the defendant’s act underlying the plaintiff’s causes of action must *itself* have been an act in furtherance of the right of petition or free speech. (*City of Cotati, supra*, 29 Cal.4th at 78.) In other words, “the critical consideration is whether the cause of action is *based on* the defendant’s protected free speech or petitioning activity.” (*Navellier, supra*, 29 Cal.4th at 89.)

Whether the anti-SLAPP statute applies is determined by the “principal thrust or gravamen” of the plaintiff’s claims; it cannot be invoked where the allegations of protected activity are only *incidental* to a cause of action based on nonprotected activity. (*Martinez v. Metabolife Int’l, Inc.* (2003) 113 Cal.App.4th 181, 187.) “If the core injury-causing conduct on which plaintiff’s claim is premised does not rest on protected speech, collateral or incidental allusions to protected activity will not trigger application of the anti-SLAPP statute.” (*Trilogy at Glen Ivy Maintenance Assn. v. Shea Homes, Inc.* (2015) 235 Cal.App.4th 361, 368 [*citing Martinez, supra*, 113 Cal.App.4th at 189].) “To determine the applicability of . . . the anti-SLAPP statute, [courts] look to the gravamen of the instant action. . . . [T]he gravamen of an action is the *allegedly wrongful and injury-producing conduct*, not the damage which flows from said conduct.” (*Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 387 [*original emphasis*]; *accord Trapp v. Naiman* (2013) 218 Cal.App.4th 113, 121.

Defendant argues that the TAC’s references to “housing decisions,” “refusal to continue Plaintiff’s housing arrangement,” refusal of Plaintiff’s tenders of payment, requirement that Plaintiff “vacate the Campground,” and loss of possession of Site 400 arise from the UD Action, which is protected activity. (Motion, pp. 2-4.) However, the TAC is not entirely premised on Plaintiff’s loss of housing claims. Rather, the TAC sets forth allegations of wrongful termination and disability discrimination, which then resulted in the loss of employee housing. For example, Plaintiff’s first and third causes of action for

retaliation allege that in addition to refusing to continue her housing situation, Defendants' materially adverse employment actions also included terminating Plaintiff's employment and cancelling her TT membership. (TAC, ¶¶ 136 and 153.) Plaintiff's second cause of action for wrongful termination only references Plaintiff's housing claims in the context of incidental damages, i.e., the loss of employment-related housing and disruption of her established residence. (TAC, ¶¶ 146.)

Accordingly, the Court denies the special motion to strike the entire TAC because the principal thrust or gravamen of the TAC does not arise from the protected UD Action.

Motion to Strike Portions of the TAC

Here, the Court considers this a *Baral* motion that strikes specific causes of action and references to protected activity. In *Baral*, the court held that a special motion to strike could be used both to attack an entire pleading or entire causes of action, and to target specific paragraphs, words and phrases. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393.)

"At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff's showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken. Allegations of protected activity supporting the stricken claim are eliminated from the complaint, unless they also support a distinct claim on which the plaintiff has shown a probability of prevailing." (*Baral, supra*, 1 Cal.5th at 396.)

"[W]hile courts may strike less than the entirety of a complaint or pleaded cause of action, the trial court is not required to take on the burden of identifying the allegations susceptible to a special motion to strike. If a defendant wants the trial court to take a surgical approach, whether in the alternative or not, the defendant must propose where to make the incisions. This is done by identifying, in the initial motion, each numbered paragraph or sentence in the complaint that comprises a challenged claim and explaining 'the claim's elements, the actions alleged to establish those elements, and wh[y] those actions are protected.' [Citation.]" (*Park v. Nazari* (2023) 93 Cal.App.5th 1099, 1109.)

Defendant seeks to specially strike the following from the TAC: the 8th through 11th causes of action (housing discrimination, housing retaliation, housing accommodation, and housing interactive process) because they are premised on the denial of continued occupancy through the termination notice and the UD Action proceedings (TAC, ¶¶ 194-224); the 13th and 14th causes of action (breach of contract and breach of the implied covenant) to the extent they are premised on Defendants' refusal of Plaintiff's tenders of payment and direction that she vacate the premises (TAC, ¶¶ 238-243, 252); the 15th through 17th causes of action (interference and IIED claims) to the extent they premised on the loss of use and possession of Site 400 (TAC, ¶¶ 263, 274, 284); and the

allegations seeking relocation expenses and damages flowing from the loss of possession of Site 400 (TAC, ¶ 88, 117 118, 124; Prayer ¶ 2).

8th Through 11th Causes of Action

The TAC's 8th through 11th causes of action are: (8) Housing Discrimination in Violation of FEHA (Gov. Code § 12955 et seq.); Housing Retaliation in Violation of FEHA (Gov. Code § 12955(f), (l), et seq.); (10) Failure to Provide Reasonable Housing Accommodation (Gov. Code § 12955 et seq.); and (11) Failure to Engage in the Good Faith Housing Interactive Process (Gov. Code § 12955 et seq.).

The TAC expressly states that these causes of action are based on Plaintiff's requests for continued occupancy after her employment was terminated, specifically her "post-employment housing rights, Defendants' refusal to permit continued annual occupancy, refusal to accept Plaintiff's repeated tenders of payment, cancellation of Plaintiff's membership, and related housing decisions." (TAC, ¶ 194, 203, 211, 219.)

Defendant argues that its refusal to accept Plaintiff's "repeated tenders of payment" and refusal to permit continued occupancy constitutes protected prelitigation activity related to its efforts to recover possession of Site 400 through the UD Action. Indeed, "[t]he litigation privilege extends to prelitigation communications relating to litigation that is contemplated in good faith and under serious consideration." (*Newport Harbor Offices & Marina, LLC v. Morris Cerrullo World Evangelism* (2018) 23 Cal.App.5th 28, 45.) Accordingly, Defendant satisfies the first prong of the anti-SLAPP analysis by establishing that the 8th through 11th causes of action arise from protected activity.

13th and 14th Causes of Action

The TAC's 13th and 14th causes of action for breach of contract and breach of the implied covenant of good faith and fair dealing allege that Defendant breached the contract and covenant when it "refused to accept Plaintiff's tender, refused to permit Plaintiff to continue occupying Site 400 as a paying annual resident, refused to honor the representations previously made concerning Plaintiff's continued occupancy, and instead directed Plaintiff to vacate the campground and advised that she would not be permitted to return to the Idyllwild Campground, including under her previously existing membership rights." (TAC, ¶ 240, 243, 252.) Accordingly, these actions and omissions arise directly from Defendant's UD Action proceedings. Thus, Defendant has satisfied the first prong as to the 13th and 14th causes of action.

15th through 17th Causes of Action

Here, the TAC's 15th and 16th causes of action for intentional interference with prospective economic advantage and contractual relations allege that Defendant interfered with Plaintiff's existing contractual relationships and business ventures by, in part, "refusing to honor prior agreements concerning Plaintiff's continued occupancy of Site 400" and "refusing Plaintiff's repeated tenders of payment for continued annual occupancy." (TAC, ¶ 263 and 274.) As noted above, these allegations arise from the protected UD Action proceedings.

However, Plaintiff also sets forth other allegations regarding interference that are unrelated to the UD Action, including "obstructing or delaying guest access; interfering

with invited business guests, scheduled commercial meetings, and business visitors; obstructing ingress and egress to Site 400; refusing or delaying guest services necessary for Plaintiff's business activities; and engaging in additional operational conduct alleged throughout this Complaint that disrupted Plaintiff's ongoing commercial relationships and prospective economic advantages." (TAC, ¶¶ 263 and 274.) Defendant recognizes that these allegations are not protected, and accordingly, seeks to strike statements from ¶¶ 263 and 274 "to the extent premised on the loss of use and possession of Site 400."

Defendant seeks to strike similar allegations from the 17th cause of action for IIED, specifically ¶¶ 284, which states in full: "Plaintiff alleges that this continuing course of conduct included the alleged retaliation for Plaintiff's protected activities; termination of her employment; refusal to honor prior representations concerning her continued occupancy of Site 400; refusal to accept Plaintiff's repeated tenders for continued annual occupancy; cancellation of Plaintiff's membership; repeated operational interference affecting Plaintiff's residence and business activities; interference with invited guests and business visitors; obstruction of access; repeated failures to respond to Plaintiff's requests for assistance and corrective action; and the additional conduct alleged throughout this Complaint." Here, the allegations regarding Defendant's "refusal to honor prior representations concerning her continued occupancy of Site 400; refusal to accept Plaintiff's repeated tenders for continued annual occupancy; cancellation of Plaintiff's membership;" arise from the protected UD Action.

Thus, Defendant meets the first prong as to the specific allegations in the 15th through 17th causes of action that arise from the loss of use and possession of Site 400.

Damages re: Relocation Expenses and Loss of Possession of Site 400

Lastly, Defendants seek to strike the TAC's allegations that seek relocation expenses and damages flowing from the loss of possession of Site 400, specifically ¶¶ 88, 117, 118, and 124, and Prayer, ¶ 2. Here, Plaintiff's loss of possession of Site 400 and subsequent relocation arise from the UD Action. Accordingly, Defendants have met the first prong as to these specific allegations.

As noted in the analyses to the first and second causes of action, Defendants' initiation, prosecution, and post-judgment enforcement of the UD Action, including obtaining the writ of execution and levying upon the default judgment, all constitute protected activities. Accordingly, Defendants have established that the third cause of action meets the first prong.

Opposing Burden of Proof

The opposing party now has the burden of proof to establish a probability that they will prevail on whatever claims are asserted against the defendant. (C.C.P. § 425.16(b).) The "probability of prevailing" is tested by the same standard governing a motion for summary judgment, i.e., in opposing an anti-SLAPP motion, and it is plaintiff's burden to make a prima facie showing of facts that would support a judgment in plaintiff's favor. (*Taus v. Loftus* (2007) 40 Cal.4th 683, 714.) As noted above, once the defendant demonstrates that a claim "arises from" defendant's exercise of free speech or petition rights, the burden shifts to the plaintiff to establish a "probability" that it will prevail on

whatever claims are asserted against the moving defendant. (C.C.P. § 425.16(b).) The plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment. (*Navellier, supra*, 29 Cal.4th at 89, 93.)

Filing an unlawful detainer complaint is unquestionably protected activity under the first prong analysis of the anti-SLAPP statute. (*Birkner v. Lam* (2007) 156 Cal.App.4th 275, 282; *Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467, 1480.) Additionally, a plaintiff cannot establish a probability of prevailing on a claim if the conduct or communications at issue are protected by the litigation privilege. (*Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP* (2017) 18 Cal.App.5th 95, 115.) The litigation privilege applies to any communication: (1) made in judicial or quasi-judicial proceedings, (2) by litigants or other participants authorized by laws, (3) to achieve the objectives of the litigation, and (4) that have some connection or logical relation to the action. (*Gallanis-Politis v. Medina* (2007) 152 Cal.App.4th 600, 616-617.) The privilege is held to be absolute in nature. (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 215.)

8th through 11th, 13th, and 14th Causes of Action

Here, Plaintiff fails to meet her burden to show that the TAC overcomes Defendants' absolute defense of litigation privilege, including prelitigation activities conducted in contemplation of the UD Action, as to the 8th through 11th and 13th and 14th causes of action. Plaintiff argues it is Defendant's conduct, rather than the UD Action or prelitigation communications, that give rise to this lawsuit. However, the only examples given to support this conclusion are in connection with the prosecution of the UD Action. Specifically, as noted above, the 8th through 11th causes of action are based on Defendant's denial of Plaintiff's requests for continued occupancy after her termination. Plaintiff contends that her 13th and 14th causes of action for breach of contract and the implied covenant of good faith and fair dealing are based upon Defendant's breach of its prior representation that Plaintiff could occupy Site 400 after her seasonal employment. (Opp., p. 14.)

However, Plaintiff's own evidence shows that Defendant's prelitigation activity in furtherance of the UD Action commenced on the date that Plaintiff was terminated. Specifically, Plaintiff's declaration confirms that she was terminated on May 30, 2025, and that same day, was given 7 days to vacate Site 400. (Brown Decl., Exhs. A-3 and A-4.) On June 10, 2025, Stewart rejected Plaintiff's offer of payment for Site 400, informed Plaintiff that Defendants would not be extending an annual lease for Site 400 to her, and repeated that she needed to vacate the site and property. (Brown Decl., Exh. A-6.) On June 11, 2025, Plaintiff was reminded that she was due to vacate by June 6, 2025. (*Id.*). On June 18, 2025, Plaintiff was served a 30 Day Notice of Termination of Tenancy. (Brown Decl., Exh. D-1.)

Defendant contends that the refusal of Plaintiff's payments and 30 Day Notice were prelitigation activity in furtherance of the protected UD Action. Plaintiff argues that the wrongful conduct is the refusal to honor the earlier agreement to offer Site 400 after her employment, not the communications themselves. (Opp., pp. 14-15.) However, this is a distinction without a difference, especially as "conduct alleged to constitute a breach of

contract may also come within the statutory protections for protected speech or petitioning.” (*Feldman, supra*, 160 Cal.App.4th at 1483-1484.) Thus, the litigation privilege applies to protect Defendant’s prelitigation conduct. Since the privilege is absolute, Plaintiff cannot establish a probability of prevailing on these claims against Defendant. (See *Optional Capital, supra*, 18 Cal.App.5th at 115.)

Accordingly, the Court grants the motion to strike as to Plaintiff’s 8th through 11th causes of action because they arise from protected activities and Plaintiff failed to meet his opposing burden.

15th through 17th Causes of Action; Damages

As to the 15th and 16th causes of action for interference, Plaintiff alleges that her claims are also based on unprotected activities. (Opp., pp. 15-16.) However, Defendant acknowledges this and seeks to strike only certain portions of these causes of action that are protected by the litigation privilege.

Plaintiff’s Opposition does not address the specific allegations that the Defendant seeks to strike from the 15th through 17th Causes of Action, nor does Plaintiff address the allegations of relocation expenses and damages that Defendant seeks to strike. As noted above, Plaintiff has not established a probability of prevailing on allegations of conduct or communications protected by the litigation privilege, such as the statements “premised on the loss of use and possession of Site 400” that Defendant seeks to strike from the 15th through 17th Causes of Action, damages, and Prayer.

Thus, the Court grants the motion to strike as to the following portions of the TAC: ¶ 88 [“housing” and “possession of Site 400”]; ¶ 117 [“loss of employment-related housing,” and “relocation expenses”]; ¶ 118 [“loss of her employment-related housing at Site 400, disruption of her residence...interruption of her established living arrangements, loss of the anticipated annual residential occupancy of Site 400, and additional expenses incurred to relocate, preserve her property, and mitigate the disruption to her residence...”]; ¶ 124 [to the extent Plaintiff seeks damages flowing from the loss of possession of Site 400]; ¶ 240-243 and 252 [with the exception of references to Plaintiff’s membership]; ¶ 263 [“refusing to honor prior agreements concerning Plaintiff’s continued occupancy of Site 400; refusing Plaintiff’s repeated tenders of payment for continued annual occupancy”]; ¶ 274 [“refusing to honor prior agreements concerning Plaintiff’s continued occupancy of Site 400, refusing Plaintiff’s repeated tenders of payment”]; ¶ 284 [“refusal to honor prior representations concerning her continued occupancy of Site 400; refusal to accept Plaintiff’s repeated tenders for continued annual occupancy”]; Prayer, ¶ 2 [“loss of employment-related housing,” and “relocation expenses”].

Attorney Fees

A prevailing defendant on an anti-SLAPP motion shall be entitled to recover their attorney fees and costs. (C.C.P. § 425.16(c).) Any fee award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.)

Here, Defendant seeks \$2,700.00 in attorney fees for filing and defending this motion, calculated as 9.0 hours at a rate of \$300.00/hour. The hourly rate is reasonable.

However, Defendant seeks 2.0 hours for appearing at the hearing on this motion. The Court strikes 1.0 hour from the expended time, and award \$2,400.00 [8.0 hours x \$300.00/hour].

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505479	FABIE VS HYUNDAI MOTOR AMERICA	DEMURRER

Tentative Ruling: Defendant's Demurrer is sustained without leave to amend.

REQUEST FOR JUDICIAL NOTICE

Defendant asks the Court to take judicial notice of (1) Plaintiff's original Complaint, filed 8/20/25; (2) Plaintiff's counsel declaration, her opposition to the demurrer to the FAC, filed 5/7/26; and (3) the fact that Defendant opted in to C.C.P. §§ 871.20-871.30. Plaintiff does not object, and these facts/documents are the proper subject of judicial notice. (Evid. Code § 452(d), (h).) Accordingly, the request is granted.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

CAUSES OF ACTION (1ST-5TH) - THE STATUTE OF LIMITATIONS.

C.C.P. 871.20, effective January 1, 2025, "applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty." (C.C.P. § 871.20.) Judicially noticeable facts show that Defendant elected to proceed under C.C.P. §§ 871.20 et. seq. [RFJN iso Reply, Ex. B], and Plaintiff seeks restitution or replacement of the Vehicle in this action [see, SAC at ¶¶ 18, 26, Prayer at ¶ B], so this is an action covered by C.C.P. § 871.20.

C.C.P. § 871.21 provides the time in which such an action must be filed. It states as follows:

- (a) An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.